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|    |                                                                                                                     | <p>ROA 2, entitled “Verification,” lists Alicia Garrett as the property manager, but the signature line is also blank. Plaintiff is ordered to file an amended complaint within 5 business days.</p> <p>The Court Clerk is ordered to provide notice of the Court’s ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 18 | 30-2026-01569741<br>Revxpros, Inc. vs.<br>Hassas                                                                    | <p>The Court has read and considered the Defendant’s Demurrer to the Complaint (ROA 26) and the Complaint (ROA 2).</p> <p>When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court <b>OVERRULES</b> the Defendant’s demurrer.</p> <p>The Defendant is ordered to file an Answer within 5 calendar days.</p> <p>The Plaintiff is ordered to provide notice of the Court’s ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 20 | 30-2026-01583181<br>Leon Shu Yau As<br>Trustee Of The Leon<br>Shu Yao & Kieu Hue<br>Ly Revocable Trust<br>vs. Young | <p>The Court has read and considered the Defendant’s Motion to Dismiss (ROA 10).</p> <p>The Court takes Judicial Notice of the Complaint (ROA 2) and Proof of Service of Summons (ROA 7).</p> <p>A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer.</p> <p>The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory time period.</p> <p>As the Defendant essentially argues the Motion to Dismiss as a Demurrer to the Complaint by arguing the Plaintiff failed to state facts sufficient to constitute a cause of action and on its face is defective, the Court deems the Defendant’s Motion to Dismiss a Demurrer to the Complaint and will rule based on the filing.</p> <p>The Court in <i>Walters v. Meyers</i> (1990) 226 Cal.App.3d Supp. 15, 20 held “that service of the three-day notice by posting and mailing is effective on the date the notice is posted and mailed.” Here, the Complaint, the Notice to Pay Rent or Quit, and the Proof of Service for the Notice to Pay Rent or Quit show that service was effectuated by posting and mailing on June 25, 2026. The end of day on June 30, 2026, marks the end of the 3-day period. The Complaint in this matter was filed with the Court on July 1, 2026. The Complaint is facially sufficient to state a cause of action for an unlawful detainer. Therefore, the Court <b>OVERRULES</b> the Demurrer.</p> <p>Defendant is ordered to file an Answer within 5 calendar days.</p> <p>Plaintiff is ordered to provide notice of the Court’s ruling.</p> |